

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #11	CCRB Case #: 202100314	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/14/2021 11:27 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/14/2022	Precinct: 101		
Date/Time CV Reported Fri, 01/15/2021 8:03 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 01/15/2021 8:03 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Humburg	04842	947090	INT CIS
2. POM John Ramalho	22226	962709	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Humburg	Abuse: Police Officer Steven Humburg entered the driveway of § 87(2)(b) in Queens.	A . Substantiated
B . POM John Ramalho	Abuse: Police Officer John Ramalho entered the driveway of § 87(2)(b) in Queens.	B . Substantiated
C . POM Steven Humburg	Abuse: Police Officer Steven Humburg stopped § 87(2)(b)	C . Substantiated
D . POM Steven Humburg	Abuse: Police Officer Steven Humburg stopped § 87(2)(b)	D . Substantiated
E . POM Steven Humburg	Abuse: Police Officer Steven Humburg stopped § 87(2)(b)	E . Substantiated
F . POM John Ramalho	Abuse: Police Officer John Ramalho stopped § 87(2)(b)	F . Substantiated
G . POM John Ramalho	Abuse: Police Officer John Ramalho stopped § 87(2)(b)	G . Substantiated
H . POM John Ramalho	Abuse: Police Officer John Ramalho stopped § 87(2)(b)	H . Substantiated
I . POM Steven Humburg	Force: Police Officer Steven Humburg used physical force against § 87(2)(b)	I . Unfounded
J . POM John Ramalho	Force: Police Officer John Ramalho used physical force against § 87(2)(b)	J . Unfounded
K . POM Steven Humburg	Force: Police Officer Steven Humburg used physical force against § 87(2)(b)	K . Unfounded
L . POM Steven Humburg	Abuse: Police Officer Steven Humburg frisked § 87(2)(b)	L . Unsubstantiated
M . POM Steven Humburg	Abuse: Police Officer Steven Humburg frisked § 87(2)(b)	M . Unsubstantiated
N . POM John Ramalho	Abuse: Police Officer John Ramalho frisked § 87(2)(b)	N . Unsubstantiated
O . POM Steven Humburg	Abuse: Police Officer Steven Humburg searched the vehicle in which § 87(2)(b) was an occupant.	O . Substantiated
P . POM Steven Humburg	Abuse: Detective Steven Humburg searched the vehicle in which was an occupant.	P . Unfounded

Officer(s)	Allegation	Investigator Recommendation
Q . POM John Ramalho	Abuse: Police Officer John Ramalho refused to provide his name to § 87(2)(b)	Q . Unfounded
R . POM John Ramalho	Abuse: Police Officer John Ramalho threatened to issue § 87(2)(b) a summons.	R . Substantiated
S . POM John Ramalho	Abuse: Police Officer John Ramalho threatened to issue § 87(2)(b) a summons.	S . Substantiated
T . POM John Ramalho	Abuse: Police Officer John Ramalho threatened to issue § 87(2)(b) a summons.	T . Substantiated
U . POM Steven Humburg	Abuse: Police Officer Steven Humburg did not provide a business card to § 87(2)(b)	U . Substantiated
V . POM Steven Humburg	Abuse: Police Officer Steven Humburg did not provide a business card to § 87(2)(b)	V . Substantiated
W . POM Steven Humburg	Abuse: Police Officer Steven Humburg did not provide a business card to § 87(2)(b)	W . Substantiated
X . POM John Ramalho	Abuse: Police Officer John Ramalho did not provide a business card to § 87(2)(b)	X . Substantiated
Y . POM John Ramalho	Abuse: Police Officer John Ramalho did not provide a business card to § 87(2)(b)	Y . Substantiated
Z . POM John Ramalho	Abuse: Police Officer John Ramalho did not provide a business card to § 87(2)(b)	Z . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 15, 2021, § 87(2)(b) filed this complaint with the CCRB via the call processing system. She saw the officers leaving her front yard after interacting with her brother, § 87(2)(b).

On January 14, 2021, § 87(2)(b) was in his vehicle in the driveway of his residence, § 87(2)(b) in Queens, with his friends § 87(2)(b) and § 87(2)(b). PO Steven Humburg and PO John Ramalho, both of the Intelligence Bureau's Criminal Intelligence Section, entered the driveway, approached the vehicle, and stopped all three individuals (**Allegations A-H: Abuse of Authority: Substantiated**). PO Humburg allegedly pulled § 87(2)(b) out of the vehicle and slammed him against the car parked next to him (**Allegation I: Force: Unfounded**). PO Humburg and PO Ramalho also allegedly pulled § 87(2)(b) and § 87(2)(b) out of the vehicle (**Allegations J and K: Force: Unfounded**). PO Humburg frisked § 87(2)(b) (**Allegation L: Abuse of Authority: Unsubstantiated**) and PO Ramalho frisked § 87(2)(b) and § 87(2)(b) (**Allegations M and N: Abuse of Authority: Unsubstantiated**). PO Humburg searched the body of § 87(2)(b) vehicle and allegedly searched the trunk (**Allegation O: Abuse of Authority: Substantiated; Allegation P: Abuse of Authority: Unfounded**). PO Ramalho allegedly refused to provide his name to § 87(2)(b) (**Allegation Q: Abuse of Authority: Unfounded**). PO Ramalho threatened to issue the individuals summonses (**Allegations R, S, and T: Abuse of Authority: Substantiated**). Neither PO Humburg nor PO Ramalho offered § 87(2)(b) or § 87(2)(b) a business card (**Allegations U-Z: Abuse of Authority: Substantiated**). § 87(2)(g), § 87(4-b)

The investigation obtained cell phone footage from § 87(2)(b) (Board Review 01) and body-worn camera (BWC) footage from PO Ramalho and PO Humburg (Board Reviews 02 and 03). No one was injured, arrested, or issued a summons during this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Steven Humburg entered the driveway of § 87(2)(b) in Queens.

Allegation (B) Abuse of Authority: Police Officer John Ramalho entered the driveway of § 87(2)(b) in Queens.

Allegation (C) Abuse of Authority: Police Officer Steven Humburg stopped § 87(2)(b).

Allegation (D) Abuse of Authority: Police Officer Steven Humburg stopped § 87(2)(b).

Allegation (E) Abuse of Authority: Police Officer Steven Humburg stopped § 87(2)(b).

Allegation (F) Abuse of Authority: Police Officer John Ramalho stopped § 87(2)(b).

Allegation (G) Abuse of Authority: Police Officer John Ramalho stopped § 87(2)(b).

Allegation (H) Abuse of Authority: Police Officer John Ramalho stopped § 87(2)(b).

It is undisputed that § 87(2)(b) and § 87(2)(b) were sitting in § 87(2)(b) vehicle in the driveway of § 87(2)(b) in Queens for at least 20 minutes before the incident began. PO Humburg and PO Ramalho drove past the vehicle once, then turned around and drove past the vehicle a second time.

In PO Ramalho's BWC video, PO Ramalho and PO Humburg traverse a fence separating the driveway from the sidewalk to stop § 87(2)(b) and § 87(2)(b) and § 87(2)(b) both admit to PO Ramalho that the three individuals in the vehicle were smoking marijuana before the officers arrived at the car (Board Review 02).

§ 87(2)(b) denied that any of the individuals in the car were using drugs before the officers arrived (Board Review 04). § 87(2)(b) did not mention any drug use on the part of the individuals in the vehicle before the officers approached (Board Review 05). The investigation

could not reach § 87(2)(b) despite multiple attempts.

Both PO Humburg and PO Ramalho testified that they approached the car because the two times they passed it in their vehicle, they smelled marijuana (Board Review 06 and 07). Neither officer reported viewing seeing the occupants of the vehicle smoking marijuana nor did they mention any other crime.

In People v. Theodore 114 A.D.3d 814 (2014), courts ruled that a detective who entered the curtilage, in that case, the back yard of an individual's home and saw them smoking marijuana violated that person's reasonable expectation of privacy. § 87(2)(b) and § 87(2)(b) were within the curtilage of the house, where they had a right to privacy, at the time that PO Humburg and PO Ramalho stopped them (Board Review 08).

§ 87(2)(g)

It is therefore recommended that **Allegations A-H** be closed as **substantiated**.

Allegation (I) Force: Police Officer Steven Humburg used physical force against § 87(2)(b)

Whether PO Humburg used force against § 87(2)(b) is in dispute.

PO Humburg's body-worn camera (BWC) shows § 87(2)(b) stepping out of the vehicle on his own power when PO Humburg and PO Ramalho approach the car (Board Review 03).

§ 87(2)(b) testified that instead of letting him get out of the vehicle, PO Humburg opened the door, pulled him out of the vehicle, and struck him against his sister's car, which was parked next to his in the driveway (Board Review 05).

PO Humburg denied using any force to get § 87(2)(b) out of the vehicle (Board Review 06).

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **unfounded**.

Allegation (J) Force: Police Officer John Ramalho used physical force against § 87(2)(b)

Allegation (K) Force: Police Officer Steven Humburg used physical force against § 87(2)(b)

Whether PO Humburg and PO Ramalho used force against § 87(2)(b) and § 87(2)(b) is in dispute.

PO Ramalho's BWC shows him telling § 87(2)(b) to step out of the vehicle. § 87(2)(b) then steps out of the vehicle on his own power (Board Review 02). PO Humburg's BWC video shows § 87(2)(b) stepping out of the vehicle after PO Humburg opens the door of the vehicle (Board Review 03).

Both § 87(2)(b) and § 87(2)(b) stated that officers pulled § 87(2)(b) and § 87(2)(b) from the vehicle (Board Reviews 04 and 05). § 87(2)(b) could not be reached by the investigation. PO Ramalho and PO Humburg denied doing so or did not recall whether they had (Board Reviews 06 and 07).

Both PO Ramalho's and PO Humburg's videos show that § 87(2)(b) and § 87(2)(b) left the vehicle on their own power § 87(2)(g) § 87(2)(g) It is therefore recommended that **Allegations J and K** be closed as **unfounded**.

Allegation (L) Abuse of Authority: Police Officer Steven Humburg frisked § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Steven Humburg frisked § 87(2)(b)

Allegation (N) Abuse of Authority: Police Officer John Ramalho frisked § 87(2)(b)

It is undisputed that PO Humburg frisked § 87(2)(b) and § 87(2)(b) and that PO Ramalho frisked § 87(2)(b)

PO Humburg's video shows him patting down § 87(2)(b) shortly after he gets out of the car. It also shows him telling § 87(2)(b) not to go for his pockets before he pats down his clothing. He does not make a similar statement to § 87(2)(b). As the incident occurred at night, what § 87(2)(b) and § 87(2)(b) were doing in the vehicle was not clear prior to their being frisked, in either video (Board Reviews 02 and 03).

PO Ramalho stated that he frisked the individuals that he did because they were moving towards their pockets and fidgeting (Board Review 07). PO Humburg testified that he frisked § 87(2)(b) because he saw him reaching for something. He later learned that the items these individuals were reaching for were cellphones (Board Review 06).

§ 87(2)(g)

neither the officers' body-worn cameras nor the footage provided by § 87(2)(b) could show the entirety of what was happening in the car at the time.

§ 87(2)(g)

It is therefore recommended that **Allegations L-N** be closed as **unsubstantiated**.

Allegation (O) Abuse of Authority: Police Officer Steven Humburg searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (P) Abuse of Authority: Police Officer Steven Humburg searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Humburg searched the main body of the vehicle during this incident. Whether he searched the trunk, however, is in dispute.

PO Humburg's BWC video shows him searching the main body of the vehicle after all the occupants left the car. It does not show him searching the trunk (Board Review 03).

§ 87(2)(b) and § 87(2)(b) alleged that PO Humburg searched the main body of the vehicle and the trunk during the incident (Board Reviews 04 and 05).

PO Humburg admitted to searching the main body of the vehicle as he smelled marijuana when he approached it. He denied searching the trunk of the car (Board Review 06).

§ 87(2)(g)

As mentioned above, People v. Theodore 114 A.D.3d 814 (2014) forbids officers from searching within the curtilage of a home in the absence of a crime being committed in plain view.

§ 87(2)(g)

It is therefore recommended that **Allegation O** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation P** be closed as **unfounded**.

Allegation (Q) Abuse of Authority: Police Officer John Ramalho refused to provide his name to § 87(2)(b).

Whether PO Ramalho refused to provide his name to § 87(2)(b) upon request is in dispute.

Neither PO Ramalho's nor PO Humburg's BWC footage show § 87(2)(b) requesting PO Ramalho's name. PO Ramalho's BWC shows § 87(2)(b) saying, "This your name? Okay, thank you," to PO Ramalho (Board Review 02).

Both § 87(2)(b) and § 87(2)(b) stated that PO Ramalho did not provide his name when

§ 87(2)(b) asked it of him (Board Reviews 04 and 05).

PO Ramalho and PO Humburg both denied that PO Ramalho refused to provide his name upon request (Board Reviews 06 and 07).

§ 87(2)(g) It is therefore recommended that **Allegation Q** be closed as **unfounded**.

Allegation (R) Abuse of Authority: Police Officer John Ramalho threatened to issue § 87(2)(b) a summons.

Allegation (S) Abuse of Authority: Police Officer John Ramalho threatened to issue § 87(2)(b) a summons.

Allegation (T) Abuse of Authority: Police Officer John Ramalho threatened to issue § 87(2)(b) a summons.

It is undisputed that PO Ramalho mentioned issuing the group a summons near the end of the stop. In his BWC footage, he says, "If you want to keep going, you can get a summons," when the members of the group dispute that smoking marijuana is illegal. Shortly after, he asks § 87(2)(b) "Do you want to get a summons, sir?" (Board Review 02).

PO Ramalho stated during his interview that what drew him to the vehicle was the odor of marijuana coming to the car. He saw people in the vehicle as he approached but he did not see anything else, and he did not independently mention any other crime (Board Review 07).

§ 87(2)(g) It is therefore recommended that **Allegations R, S, and T** be closed as **substantiated**.

Allegation (U) Abuse of Authority: Police Officer Steven Humburg did not provide a business card to § 87(2)(b).

Allegation (V) Abuse of Authority: Police Officer Steven Humburg did not provide a business card to § 87(2)(b).

Allegation (W) Abuse of Authority: Police Officer Steven Humburg did not provide a business card to § 87(2)(b).

Allegation (X) Abuse of Authority: Police Officer John Ramalho did not provide a business card to § 87(2)(b).

Allegation (Y) Abuse of Authority: Police Officer John Ramalho did not provide a business card to § 87(2)(b).

Allegation (Z) Abuse of Authority: Police Officer John Ramalho did not provide a business card to § 87(2)(b).

It is undisputed that neither PO Humburg nor PO Ramalho provided a business card to § 87(2)(b) or § 87(2)(b) and that none of these civilians was arrested or issued a summons.

PO Humburg's BWC footage shows that § 87(2)(b) vehicle was stationary and in a driveway at the time that the officers approached (Board Review 03).

PO Ramalho stated that he did not provide a business card to the individuals because he believed that he engaged in a vehicle stop, which did not require him to provide a business card to the civilians (Board Review 07). PO Humburg did not believe that he was carrying business cards on his person at the time (Board Review 06).

New York City Administrative Code 14-174 requires officers to provide business cards to civilians they stop or search without issuing them a summons (Board Review 09).

§ 87(2)(g)

it is recommended that **Allegations U-Z** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (Board Reviews 12-15).
- PO Humburg has been a member of service for 13 years and has been a subject in four CCRB complaints and nine allegations, none of which were substantiated. § 87(2)(g)
- PO Ramalho has been a member of service for 4 years and has been a subject in three CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint (Board Review 05).
- As of August 6, 2021, according to the New York City Office of the Comptroller, no Notice of Claim has been filed in regards to this complaint (Board Review 16).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 11

Investigator: Miriam Lynch
Signature

SI Miriam Lynch
Print Title & Name

09/28/2021
Date

Squad Leader: Edwin Pena IM Edwin Pena 09/28/21
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date